

Exam Playbook

A. Copyright (CO, Cap.528) Questions

Issue Type	Statutory Route	What to Prove (Checklist)	Ready-to-Use Answer Skeleton
Identify works	s.2(1), s.4	逐项拆分: 文本、图表、源代码、目标代码、字幕、数据库结构等是否是独立作品类别。	"Relevant works include [...] Each qualifies as [literary/artistic/etc.] under s.1..."
Authorship & first ownership	s.11-s.15, s.13	先定作者, 再定第一所有权; 雇员职务作品通常归雇主; 委托关系看合同。	"Authorship lies with [...], but first ownership vests in [...] under s. [...], subject to any contrary agreement."
Freelancer/commissioned work	s.14(1), s.15(1), s.15(2)	先分流: employee 还是 independent contractor (freelancer); 若是雇员再看是否 in the course of employment; 若是委托创作先看合同, 没写明时补上 s.15(2) 的法定独占利用权 + 禁止不合理用途权。	"As X is a freelancer, ownership is governed primarily by contract under s.15(1); even absent express assignment, the commissioner may rely on s.15(2) statutory exploitation rights."
Primary infringement	s.22 + s.23/24/25/27/28A/29	是否实施受限行为; 是否取用实质部分; 有无许可; 线上行为优先审 s.28A。	"By [copying/communicating/adapting] a substantial part without licence, D prima facie infringes under s.22 read with s.1..."
Software modification	s.23, s.29(3)(b)	反编译、替换模块、翻译代码都要审查复制/改编; "自己写的新模块"不当然免除对原作取用。	"Even if D wrote new code, liability remains if substantial original code/structure was copied or adapted."
Secondary infringement	s.30-s.32, s.35	进口、持有、分销、售卖侵权复制品; 是否知悉或应知。	"D dealt in infringing copies in the course of business and had at least reason to believe their status, engaging s.1..."
Criminal copyright	s.118, s.120	商业规模、牟利性、跨境复制并回港等情形; 民刑分流要写清。	"Civil liability arises under ss.30-32; criminal exposure may additionally arise under ss.118/120 on these commercial facts."
Exclusive licensee standing	s.103, s.112, s.113	排他被许可人可单独起诉, 是否须并列权利人。	"Letflix, as exclusive licensee, may sue under s.[...] subject to procedural joinder requirements."
Fair dealing defences	s.37(3), s.38, s.39, s.39A, s.41A	目的、比例、市场替代效应、鸣谢; "非商业"声明不自动成立抗辩。	"The defence is unlikely because the use substituted the market for the original and exceeded what is fair under s.37(3)."
Internet/transmission	s.28A, s.65	串流、缓存、可下载性、向公众开放程度; 浏览豁免边界。	"Uploading/streaming to subscribers is communication to the public under s.28A; s.65 does not excuse this commercial dissemination."

B. PDPO (Cap.486) Questions

Issue Type	Statutory Route	What to Prove (Checklist)	Ready-to-Use Answer Skeleton
Is it personal data?	s.2(1)	是否识别在世个人; 数据是否由 data user 控制; 是否来自 data processor 场景。	"The information (name + address + phone + account linkage) clearly constitutes personal data under s.2(1)."
New purpose use	DDP3 + s.2(12)	原收集目的与现用途是否一致; 是否有订明同意。	"Using the data for direct marketing/doxxing is a new purpose and requires prescribed consent under DDP3."
Data security incident	DDP4	是否采取合理安保措施; 是否存在访问控制、最小权限、日志审计缺陷。	"The breach indicates likely non-compliance with DDP4 unless PFB can show practicable safeguards were in place."
Data access request	ss.18-21, s.20	请求对象是否 "personal data"; 能否分离第三方信息; 是否触发拒绝理由。	"Bestrade should provide call records as requester' s personal data, but may redact third-party data and rely on s.20 grounds where strictly applicable."
Data correction	ss.22-25	是否属于不准确资料; 更正后通知义务。	"If inaccuracy is established, the data user must correct and notify downstream recipients as required."
Direct marketing	Part 6A, ss.35B-35M	先告知、同意/不反对、首次通知、退出机制、第三方转移条件。	"SWB" s use appears to contravene Part 6A because consent/notification prerequisites were not met before marketing use."
Doxxing offences	s.64(1), (3A), (3C) + (3)/(3B)/(3D)	未经授权披露 + 意图/旁观造成指明伤害 + 实际后果。	"Alex' s postings likely satisfy doxxing elements: unauthorised disclosure, intent/recklessness, and specified harm."
Commissioner powers	s.50A, s.50B, s.66K-66O	执行通知与停止披露通知是否已发; 不遵从的独立罚则。	"If a cessation notice is served, continued disclosure would trigger separate offence exposure under s.66O."
Compensation claim	s.66, s.66(2), s.65	资料当事人损失 (含情感损害); 雇主替代责任与免责。	"Betty may seek compensation under s.66, including injury to feelings, and employer liability may arise via s.65 where applicable."

C. Patent (Cap.514) Questions

Issue Type	Statutory Route	What to Prove (Checklist)	Ready-to-Use Answer Skeleton
Excluded subject matter	s.9A, s.9A(2)-(6)	先定 claim 的 "真正内容"; 再逐项看是否落入发现/数学方法/治疗方法等排除。若有技术效果与技术手段, 论证其不只是抽象规则。	"The process claim should first be screened under s.9A. On these facts, the claim is [not merely abstract / likely an excluded method] because ... Therefore the claim is [not excluded / excluded] at this stage."
Novelty attack	s.9B + s.2(1)	锁定 material date; 找最接近现有技术; 对每个必要技术特征是否全部先公开。只要单一文献完整披露, 即缺新颖性。	"The material date is [date]. If the prior use/publication already disclosed all essential integers of the claim, the claim lacks novelty under s.9B."
Inventive step	s.9C	识别区别特征; 判断对本领域技术人员是否显而易见; 避免事后诸葛亮。若仅替换同等元件, 通常显而易见。	"Compared with [closest prior art], the only distinguishing feature is [...]. This appears [obvious/non-obvious] to the skilled person, so s.9C is [not met/met]."
Industrial applicability	s.9D	能否在生产中制造或使用并重复实现技术效果。纯审美/纯智力步骤较难满足。	"The claimed invention is capable of industrial application because it can be repeatedly implemented in [...], satisfying s.9D."
Employee invention ownership	s.57, s.9E	是否在雇佣过程中作出; 是否属受雇职责或特别指派任务; 合同是否有约定先。	"Although X is named inventor, entitlement depends on s.57 and employment context. Since the invention was made [in/outside] normal duties, title should vest in [employer/employee]."
Co-ownership/licensing	s.54(1)-(3)	若为共同权利人, 审查单方许可或处分是否需要他方同意。	"Under s.54, a co-owner cannot freely grant third-party rights beyond the statutory scope without the required concurrence."
Revocation strategy	s.91, s.9A-9D, s.111A	被诉方应同时主张不可专利、新颖性缺失、创造性不足、说明不足等; 并检视不损害披露例外是否可免。	"DreamToys should file revocation under s.91, relying primarily on [s.9B/s.9C], and pre-empt any s.111A exception by contesting its conditions."
Pre-grant protection	s.88(1), s.88(3)	公开后到授权前是否可追溯; 需证明后续授权权利覆盖相关行为。	"If grant is eventually obtained, s.88 may allow limited retrospective relief for acts done after publication, subject to statutory conditions."

High Frequency Tests

A. Copyright (CO, Cap.528) Tests

在检验什么 (适用问题)	步骤 + 判断 (决策树)	Test / Doctrine	Authority	Output Line
要解决 "作品版权到底归谁" 的问题: 雇员关系下是否归雇主当然取得, 或仍由创作者/受雇方保留。	先定身份 (employee / independent contractor) → 若为 employee, 再看是否 in course of employment; 若是, 通常归雇主。若为 freelancer/commissioned, 则先看合同是否有有效分配/转让条款; 若无, 再补审 s.15(2) 法定权利后下结论。	Employee vs freelancer ownership test	Cap.528 s.14(1), s.15(1), s.15(2)	"Ownership does not automatically pass to the hiring party for freelancer work; absent assignment, analyse s.15(1) contract terms and s.15(2) statutory rights."
要解决 "是否已取用到受保护内容" 的问题: 被取用部分是否达到实质部分门槛。	先定位被取用内容 → 再判断其是否体现原作原创性核心表达/结构/编排 (重质不重量) → 若是, 即使数量不大也可满足实质部分要件; 若仅属非原创或琐碎内容, 通常不满足。	Substantial part test (qualitative)	Cap.528 s.22(3); case law approach	"Although quantitatively limited, what was taken is qualitatively substantial, so s.22(3) is met."
要解决 "平台/管理者是否要为他人侵权负责" 的问题: 是否构成授权侵权。	看被告是否控制工具/平台 + 是否知悉或应知侵权风险 + 是否已采取合理防范措施 → 若控制/从知明显且防范不足, 较可能认定授权; 若缺乏控制或已合理限缩, 较不易成立。	Moorhouse authorisation test	UNSW v Moorhouse: Cap.528 s.22(2), s.22(2A)	"Given control + knowledge + inadequate preventive steps, D likely

				authorised primary infringement under s.22(2)."
要解决 "境外复制制品在香港如何定性" 的问题: 是否按侵权复制品处理。	做事实判断: 若该复制品改为在香港制作, 是否会侵权 → 若会, 则在香港可视为 infringing copy, 并可触发相关次级侵权责任; 若不会, 则通常不成立或路径。	Hypothetical manufacture test for infringing copy	Cap.528 s.35(3)	"Under s.35(3), the imported copies are treated as infringing copies because local hypothetical manufacture would infringe."
要解决 "被告使用是否可受公平处理抗辩" 的问题: 是否属于 fair dealing。	依四因素审查 (用途性质、原作品性质、取用比例与实质性、市场替代影响) → 再整体评估是否与作品正常利用冲突 → 若整体公平, 抗辩较可能成立; 若替代市场明显且取用过度, 通常不成立。	Fair dealing 4-factor test	Cap.528 s.38(3), s.39(4), s.39A(2), s.41A(2), s.37(3)	"On the four factors, the dealing substitutes the original market and is unlikely to be fair."

B. PDPO (Cap.486) Tests

在检验什么 (适用问题)	步骤 + 判断 (决策树)	Test / Doctrine	Authority	Output Line
要解决 "这批信息是否受 PDPO 规制" 的问题: 是否构成 personal data。	看是否关乎在世个人 + 是否可直接/间接识别 + 是否处于 data user 控制/持有场景 → 三者满足时通常构成 personal data, 进入 DPP 义务框架; 否则相关义务通常不触发或明显减轻。	Personal data threshold test	Cap.486 s.2(1)	"The dataset is personal data because individuals are identifiable from linked identifiers and account records."
要解决 "新用途是否合法" 的问题: 现用途是否超出原收集目的且缺乏同意。	先定原收集目的 → 判断现用途是否属于 new purpose → 若是, 继续查是否有效 prescribed consent 与证据链; 若无有效同意, 通常违反 DPP3; 若非 new purpose 或同意完整, 风险下降。	New purpose + prescribed consent test	DDP3 + Cap.486 s.2(12)	"The marketing/doxxing use is a new purpose and is unlawful absent prescribed consent under DDP3."
要解决 "数据安全是否合理" 的问题: 是否已采取合理可行安全措施。	按 DPP4 要素核查: 最小权限、访问控制、日志审计、离职权限回收等数据安全管理 → 若关键环节缺失, 较可能不合理; 若措施系统且可证明执行, 较能支持合规立场。	DDP4 practicable security test	DDP4	"Given weak access controls and missing audit safeguards, DDP4 non-compliance is likely."
要解决 "DAR 能否整体拒绝" 的问题: 是否应部分履行而非一概拒绝。	先审请求是否针对 requester 本人 personal data → 若夹杂第三方信息, 先做删改/遮蔽部分披露 → 仅在适用法定例外时拒绝, 且需逐项给出 s.20 理由; 无充分理由的 blanket refusal 风险高。	DAR partial compliance test	Cap.486 ss.18-21, esp. s.20	"The data user should provide a redacted response rather than blanket refusal, with specific s.20 reasons for withheld parts."
要解决 "是否构成 doxxing 责任" 的问题: 行为是否满足法定构成要件。	按要件逐层判断: 是否未经授权披露 + 是否具有伤害意图/旁观 + (加重型) 是否出现实际伤害或持续扩散 → 要件齐备则可能触发 s.64 责任; 若关键要件缺失或抗辩成立, 责任不成立或减轻。	Doxxing elements test	Cap.486 s.64(1), (3)/(3A)/(3B)/(3C)/(3D)	"The postings likely satisfy unauthorised disclosure and harm-intent elements, engaging s.64 doxxing liability."

C. Patent (Cap.514) Tests

在检验什么 (适用问题)	步骤 + 判断 (决策树)	Test / Doctrine	Authority	Output Line
要解决 "未字面落入时是否仍侵权" 的问题: 变体是否按等同原则落入保护范围。	依 Activis 三问: Q1 是否同方式同结果; Q2 等同是否对本领域技术人员显而易见; Q3 技术人员是否仍理解为必须严格按照字面遵守 → 若 Q1/Q2 是且 Q3 否, 通常落入等同范围; 反之通常不落入。	Activis 3-question equivalence test	Activis UK v Eli Lilly [2017] UKSC 48; Cap.514 s.73	"Applying Activis, Q1/Q2 are yes and Q3 is no, so the variant is likely within claim scope by equivalence."
要解决 "侵权对比基础是否正确" 的问题: 是否先完成 claim construction。	先解释权利要求文字与必要技术特征 → 再逐项映射被诉产品/方法 → 若未先做或做错 claim construction, 后续侵权对比通常不稳固; 解释正确后再进入逐项对比才有说服力。	Claim construction first	Cap.514 s.73; lecture method	"The infringement analysis starts with claim construction; only then can the alleged product/process be mapped to each essential integer."
要解决 "该发明能否作为可专利主题继续审查" 的问题: 是否落入 s.9A 排除客体。	Aerotel 四步: 1) properly construe claim; 2) identify actual contribution; 3) 判断披露是否各整数 s.9A 排除范围; 4) 判断该贡献是否具备技术性质 → 若仅属排除客体且无技术性贡献, 则不能获专利; 否则可继续审查新颖性与创造性。	Aerotel 4-step excluded subject matter test	Aerotel v Telco [2006] EWCA Civ 1371; Cap.514 s.9A(2)	"On Aerotel step 3/4, the contribution is (pure business rule / technical), so s.9A exclusion [does / does not] apply."
要解决 "专利是否缺乏新颖性" 的问题: 是否被单一在先公开完整预见。	锁定 material date → 寻找单一可实施公开 (文献/公开使用) → 逐项核对必要特征是否全部已公开 → 若单一公开已覆盖全部必要特征, 则新颖性被破坏; 否则该障碍不成立。	Novelty full anticipation check	Cap.514 s.9B + s.2(1)	"Because one prior disclosure contains all claim integers before the material date, novelty under s.9B is destroyed."
要解决 "专利是否缺乏创造性" 的问题: 区别特征是否显而易见。	先识别区别特征 → 以本领域技术人员视角判断该区别是否显而易见 (避免 hindsight) → 若显而易见, 不满足 s.9C; 若不显而易见, 可通过创造性门槛。	Inventive step obviousness check	Cap.514 s.9C	"The only difference is [...], which would be obvious to the skilled person; s.9C is therefore not satisfied."

答卷句型

Scenario	English Sentence	Use When
法条引入	Under Cap.[xxv] s.[x], the court should examine [Element 1] and [Element 2] in sequence; on these facts, the key issue is whether those statutory elements are satisfied.	任何问开头
争点切分	This sub-question raises three distinct issues: [Issue A], [Issue B], and [Issue C], each of which should be addressed separately to avoid conflating liability tests.	多争点题
分析顺序声明	I will analyse this in the following order: (1) applicability, (2) primary liability, (3) defences, and (4) remedies / penalties.	开头先立结构
结论保留	On the current facts, X is likely to constitute [infringement / contravention]; however, liability may be reduced if D proves the [specific defence] under s.[xx].	需要平衡双方
最小假设	Without adding unnecessary assumptions, it is reasonable to assume [A] because the question expressly states [B].	老师要求 minimal assumptions
主体拆分	The analysis should be separated for A (actor), B (platform/employer), and C (right holder), with each party tested against the statutory elements independently.	多主体题
民刑分流	The same facts may trigger both civil and criminal routes: civilly under s.[...], and criminally under s.[...], each with different thresholds.	版权/私隐常见
要件逐项测试	Element [1] is satisfied because [...]. Element [2] is also satisfied because [...]. The only arguable weakness lies in Element [3], which depends on whether [...].	按分点写作
证据不足保守写法	On the present record, there is insufficient evidence to conclusively establish [Element]; therefore, the safer view is that this point remains arguable rather than proved.	事实不完整
反方论证衔接	The defendant may argue that [...]; however, that argument is weak because it does not address the statutory requirement that [...].	写双方观点
法条-事实紧扣	The legal test turns on [keyword in statute], and the fact most directly relevant to that keyword is [...].	防止空泛背法条
比较式结论	Compared with [party B], [party A] faces stronger exposure because [fact/legal threshold], whereas [party B] may still rely on [defence/limitation].	多主体对比结论
PDPO: personal data 入口	The information qualifies as personal data under s.2(1) because it can identify a living individual directly or when combined with data already held by the data user.	PDPO 开头常用

PDPO: DPP3 新目的	Using the data for [new purpose] is prima facie a new purpose under DPP3, so prescribed consent is required unless a specific statutory exemption applies.	PDPO 使用目的
PDPO: DAR/DCR	If this is a valid data access/correction request under ss.18-25, the data user must respond within the statutory framework and may refuse only on specified grounds.	查阅/改正题
PDPO: direct marketing	Part 6A imposes a front-loaded consent and notification regime; if those preconditions were not met before use/transfer, contravention is likely.	direct marketing 题
PDPO: doxxing	For s.64(3A)/(3C), the core questions are unauthorised disclosure, intent or recklessness as to specified harm, and (for s.64(3C) actual harm.	doxxing 题
Copyright: 作品识别	The first step is to identify each protected work separately (e.g. source code, artwork, text, soundtrack), because infringement is assessed work by work.	版权入口
Copyright: 所有权	Authorship and first ownership should be separated: authorship under s.11 does not automatically resolve ownership where s.14 or s.15 applies.	雇员/委托创作
Copyright: 实质部分	The question is not literal identity but whether a substantial part was taken in quality and importance, not merely in quantity.	复制/改编争议
Copyright: communication to public	Uploading or making the work available to users on demand is likely communication to the public under s.28A, even without permanent download.	平台/串流题
Copyright: fair dealing	A fair dealing argument requires purpose, proportionality, and market-impact analysis; a bare “non-commercial” label is not sufficient.	抗辩题
Patent: s.9A 过滤	Before novelty and inventive step, the claim must pass s.9A subject-matter screening by focusing on its real technical contribution.	专利题开头
Patent: 新颖性	A novelty attack succeeds if a single prior disclosure contains all essential integers of the claim as at the material date.	s.9B 题
Patent: 创造性	For inventive step, identify the distinguishing feature and ask whether that difference would be obvious to a skilled person without hindsight.	s.9C 题
Patent: entitlement	Inventorship and entitlement are distinct: even if X is the inventor, title may vest in the employer under s.57 depending on duty context.	雇员发明归属
结尾总结	Overall, [party] has a [strong/moderate/weak] case on liability, with the principal uncertainty confined to [specific element or defence].	每小问收束
分值友好结尾	If time is limited, the highest-yield points are: [Point 1], [Point 2], and [Point 3], as they determine outcome under the statutory test.	考试时间管理
救济句型	If liability is established, the likely remedies include [injunctio / damages / account of profits / compliance order], subject to proof of loss and causation.	民事后果
刑责句型	On criminal exposure, the actus reus appears satisfied by [...]; the remaining issue is mens rea, namely whether D [knew / intended / was reckless as to] [...].	刑责分析
程序句型	Procedurally, [claimant] may proceed by [route], while [defendant] should preserve [revocation/ defence/jurisdiction] arguments at the earliest stage.	程序与策略题
转段衔接	Having established [Issue A], I now turn to [Issue B], which requires a distinct statutory inquiry.	段落衔接
行为分析 (老师偏好)	I analyse each allegedly infringing act separately: [Act 1], [Act 2], and [Act 3], because each engages a different statutory element and may produce different outcomes.	避免“把所有行为揉成一段”
精确引条 (老师偏好)	The applicable provision is specifically s.(xv)(xv) rather than s.(xx) in general, because this sub-paragraph contains the exact element in dispute.	避免笼统引法条
题干事实纠错	The facts do not support the broader inference that [...]; the safer reading is [...], and the legal analysis should proceed on that narrower basis.	防止误读题目
最小假设声明 (作业要求)	I make only one necessary assumption: [...]. No further assumptions are required because the stated facts already establish [...].	老师要求 minimal assumptions
民责先于刑责	Civil infringement is established under s.(...); criminal liability is a separate and higher-threshold inquiry under s.(...), which requires additional proof of [...].	copyright/PDPO 常见
刑责否定句型	Even if civil liability is arguable, criminal liability is unlikely because the prosecution element of [commercial dealing / intent / prejudicial extent] is not clearly made out.	刑责不足时
实质部分识别	Because the copied passages/diagrams capture the core expressive content, they are likely a substantial part; copies containing them are treated in law as copies of the original work.	HW1 高频点
公开表演 vs 传播	Showing content on a screen to an audience may constitute public performance under s.(...), but it is not necessarily communication to the public unless there is electronic delivery to users’ devices under s.(...).	HW1 区分 s.27 / s.28A
授权侵权句型	By instructing others that they were free to use the copied material and approving the resulting specification, D arguably authorised infringement under s.22(2).	HW1 授权问题
交易型二次侵权	Secondary infringement under s.(...) requires both dealing conduct and the required knowledge/ reason-to-believe state; each limb must be proved separately.	HW1 s.31 / s.35 结构
业务中分展限制	Distribution in the course of business is not automatically criminal under s.118(1)(e); the business must involve dealing in infringing copies within s.118(10).	HW1 刑责排除点
不使用美法术语	I avoid non-HK concepts (e.g. “derivative work” , “public display right”) and apply only Hong Kong statutory language and structure.	老师明确扣分点
PDPO: 不公平收集	Acquiring personal data from a source known to be illicit or highly dubious is likely unfair collection contrary to DPPI(2)(b).	HW2 SWB/MDC 入口
PDPO: 原目的与新目的	The original purpose was [...]; using/selling the same data for [...] is a new purpose and requires prescribed consent under DPP3(1).	HW2 DPP3 核心
PDPO: s.35C / s.35F 配套	For direct marketing use, non-compliance with the front-end notice/consent requirements in s.35C and first-use notice obligations in s.35F creates criminal exposure.	HW2 SWB 常考
PDPO: s.35 提供他人	If D provides personal data to another for use in direct marketing, s.35) written notice-and-consent requirements apply before transfer.	HW2 MDC 常考
替代责任分流	If the employee acted in the course of employment, the employer may be vicariously liable for the civil wrong; if not, liability must be analysed as the employer’ s own subsequent conduct.	HW2 MDC 关键分叉
s.64(1) 要件核查	Liability under s.64(1) requires proof that the data was obtained from the data user without consent, then disclosed with gain/loss intent; failure on the first limb defeats the offence.	HW2 doxxing 子题

答案结构收束	Accordingly, the strongest answer structure is: identify specific acts, map each act to one section, test every element, then conclude civil and criminal consequences separately.	作业与考试通用
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Exam Drawbacks: Quick Fixes

- Do not lump acts together. Analyze each act in a separate paragraph (e.g., copying s.23, issuing s.24, authorisation s.22(2), secondary infringement s.31).
- Cite exact sub-sections. Write s.118(1)(g) instead of just s.118.
- Separate civil and criminal routes. Civil liability may succeed while criminal liability fails due to higher mens rea / prejudice thresholds.
- Use Hong Kong statutory language only. Avoid US terms like “derivative work” and “public display right” .
- State minimal assumptions explicitly. Add one short line identifying the assumption and why it is necessary.
- PDPO doxxing two-tier structure: s.64(3A) focuses on intent/recklessness (actual harm not required). s.64(3C) requires actual specified harm.
- Specified harm must fit s.64(6) categories (harassment/threat, bodily or psychological harm, safety concern, property damage), and may include harm to family members.
- Civil redress under s.66 includes injury to feelings (s.66(2)), not only financial loss.
- Statutory defences matter: check s.64(4) (crime prevention, lawful authority, consent, lawful news activity + public interest).
- Vicarious liability defence: employer may rely on s.65(3) only if it proved all practicable preventive steps.
- Copyright “public” threshold: corporate seminar attendees can be a sector of the public.
- s.27 vs s.28A must be separated: showing on screen to people physically present is not automatically communication to the public.
- Artistic-work trap: do not force diagrams into s.27; evaluate correct route (often secondary infringement analysis).
- Substantiality is qualitative first, not pure word-count.
- Authorisation test (s.22(2)): focus on sanction/approval/countenance and control over infringing use.
- For s.31/s.118, always test knowledge: “knew or had reason to believe” .
- Criminal prejudice under s.118(1)(g)/s.118(2A) requires real economic prejudice analysis against the owner’ s actual trade.
- Patent/copyright methodology common rule: identify legal issue -> map exact section -> test each element -> conclude with confidence level and key uncertainty.

中英术语表

中文	English	Exam-use Note
受限制行为	restricted acts	版权侵权总入口；通常配 s.22。
实质部分	substantial part	质而非量；核心表达被取用即可。
向公众传播	communication to the public	网络上传、串流、 on-demand 提供都要优先审此项。
改编	adaptation	含软件翻译、改写、结构性转换。
次级侵权	secondary infringement	处理侵权复制品的商业链条责任。
侵权复制品	infringing copy	常与 s.35 假设测试联动。
公平处理	fair dealing	多因素衡量，非绝对豁免。
排他许可	exclusive licence	可产生独立或并列诉讼。
资料当事人	data subject	PDPO 权利主体。
资料使用者	data user	决定用途与处理方式者；核心义务主体。
资料处理者	data processor	替他人处理数据者，责任结构不同。
订明同意	prescribed consent	DPP3/Part 6A 高频术语。
直接促销	direct marketing	先通知、后同意，可退出。
查阅资料要求	data access request (DAR)	ss.18-21 程序题必备。
更正资料要求	data correction request (DCR)	ss.22-25 程序题必备。
停止披露通知	cessation notice	s.66K 起，违规可独立定罪。
起底	doxxing	对应 s.64 系列罪名。
重要日期	material date	专利新颖性与创造性的时间锚点。
可专利客体	patentable subject matter	先过 s.9A，再审 9B/9C/9D。
新颖性	novelty	看是否被现有技术完整公开。
创造性	inventive step	对本领域技术人员是否显而易见。
工业实用性	industrial applicability	可产业实施并产生技术效果。
先申请制	first-to-file	竞合申请按先提交优先。
撤销	revocation	被告反击专利有效性的关键程序。
权利要求解释	claim construction	侵权比对前必须先做。
必要技术特征	essential integers	专利侵权逐项比对的颗粒度。

Source Statutes

A. Copyright Ordinance (Cap.528)

Section	Text	Notes
s.100	100. 对作品的部分适用的条文 (1) 第 89 条(被识别为作者或导演的权利)所赋予的权利就作品的整项或其任何实质部分而适用。 (2) 第 92 条(反对作品受侵权处理的权利)所赋予的权利以及第 96 条(虚假署名)所赋予的权利，均就作品的整项或其任何部分而适用。 [比照 1988 c. 48 s. 89 U.K.]	有些精神权利不只管“整件作品”，对实质部分同样适用。
s.103	103. 专用特许 (1) 在本部中，专用特许(exclusive licence)指由版权拥有人签署或由他人代其签署的书面特许，授权特许持有人 在扣除所有其他人(包括批出该特许的人)的情况下行使本应属该版权拥有人可行使的独有权利。 (2) 在专用特许下的特许持有人所具有的对处于受特许约束的所有权继承人而言的权利，与其所具有的对处于该特许的人而言的权利相同。 [比照 1988 c. 48 s.92 U.K.]	“专用特许”本质是排他授权，范围内别人(含权利人)都不能再用。
s.107	107. 版权拥有人可就侵犯版权提起诉讼 (1) 版权拥有人可就侵犯版权提起诉讼。 (2) 在就侵犯版权进行的诉讼中，原告人可得请求损害赔偿、强制令、交出利润或其他形式的救济，与就侵犯任何其他财产权而可得者相同。 (3) 本条在本分部的以下条文的规限下具有效力。 [比照 1988 c. 48 s. 96 U.K.]	版权人可就侵权起诉，常见救济包括赔偿和禁令。
s.108	108. 关于侵犯版权诉讼中的损害赔偿的规定 (1) 在就侵犯版权进行的诉讼中，如证明在侵犯版权时，被告人不知道和没有理由相信该诉讼所关涉的作品有版权存在，则被告人无权向被告入要求损害赔偿，但任何其他补救则不受影响。 (2) 在就侵犯版权进行的诉讼中，法院在确定案件的所有情况，尤其是以下情况时— (a) 该等权利受侵犯的损害程度； (b) 该侵犯版权行为为出于被告人的利益； (由 2022 年第 16 号第 61 条修订) (c) 被告人的业务帐目和记录的完整程度、准确程度及可量程度； (由 2022 年第 16 号第 61 条修订) (d) 构成该项侵犯	算赔偿时，法院会看主观意见、获利、证据破坏等因素。

[illegible][illegible]

[illegible]

B. PDPO (Cap.486)

[illegible][illegible]

[illegible][illegible]

	供在第 9A (4) 条提述的方法中使用的物质或合成物。如该物质或合成物在该方法中的用途，并不属现有技术的一部分，则即使该物质或合成物属现有技术的一部分，亦不阻止将该项发明视作是新颖的。(5) 凡某项发明包含供在第 9A (4) 条提述的方法中作特定用途的物质或合成物，如该物质或合成物在该方法中的特定用途，并不属现有技术的一部分，则即使该物质或合成物，以及该物质或合成物在该方法中的任何其他用途，皆属现有技术的一部分，亦不阻止将该项发明视作是新颖的。(6) 如在生效日期前，就某项既有专利展开有效性法律程序，则就该有效性法律程序而言，在紧接该日期前有效的第 94 条，继续适用于属该项专利标的之发明，犹如该条并未废除一样。(7) 如在生效日期当日或之后，就某项既有专利展开有效性法律程序，则就该有效性法律程序而言，本条适用于属该项专利标的之发明，犹如该项专利是在生效日期当日或之后批予一样。(8) 在本条中——“生效日期(commencement date)”指《2016 年专利(修订)条例》(2016 年第 17 号)开始实施的日期；“有效性法律程序(validity proceedings)”指任何法律程序，而在该法律程序中，有对某项专利的有效性的争论根据第 101 (1) 条提出；既有专利(pre-existing patent)指在生效日期前批予的标准专利或短期专利。	
s.9C	9C. 创造性 (1) 如在顾及现有技术后，某项发明对擅长有关技术的人而言，并非明显的，则该项发明须视作包含创造性。(2) 为施行第 (1) 款，如现有技术亦包含第 9B (3) 条所指的申请的内容，则在决定是否已有创造性时，不得考虑该等申请。	创造性判断：对本领域技术人员是否“显而易见”。
s.9D	9D. 工业应用某项发明如能够在任何种类的工业(包括农业)中作出或使用，则须视作能作工业应用。	工业应用要求：能在产业中制造或使用。
s.9E	9E. 专利的权利属于发明人 (1) 除第 (2) 及 (3) 款另有规定外，专利的权利属于有关发明人或其所有权继承人。(2) 如发明人是一名雇员，则专利的权利归属，须——(a) 按照该名雇员全时间或主要受雇所在的国家、地区或地方的法律而断定；或 (b) (如不能确定该名雇员在哪个国家、地区或地方受雇，但该名雇员隶属其雇主设于某国家、地区或地方的业务地点)按照该业务地点所在的国家、地区或地方的法律而断定。(3) 如有 2 人或多于 2 人各自独立地作出某项发明，则该项发明的专利的权利，属于在该等人中，其专利申请的关键日期属较早或最早者(视情况所需而定)。(4) 凡标准专利申请不曾根据第 20 或 37Q 条发表，第 (3) 款不适用于该申请。	专利权先归发明人，但雇佣关系会影响归属。